

22TRCV00916 22TRCV00916

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CB%2C07%2F07%2F2026

Source SHA-256: 0b89a5c5a8957247e60b90d129b473fa867f46c9100a83a2ba6d8085f29f9b2b

Case Number: 22TRCV00916 Hearing Date: July 7, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

MICHAEL

SENDAYDIEGO,

Plaintiff,

Case No.:

22TRCV00916

vs.

[Tentative]

RULING

HILTON

WORLDWIDE, INC., et al.,

Defendants.

Hearing

Date: July 7,
2026

Moving Parties: Defendants Hilton
Worldwide Inc., TRCF Redondo, LLC, and Nadine Koch

Responding

Party: None

(1)

Motion

to Compel Responses to Form Interrogatories, Set One

(2)

Motion

to Compel Responses to Special Interrogatories, Set One

The Court considered the moving papers. No opposition was filed.

RULING

The motions are GRANTED.

Plaintiff

Michael Sendaydiego is ordered to respond without objections to defendants' Form Interrogatories, Set One and Special Interrogatories, Set One, within twenty days.

BACKGROUND

On

October 10, 2022, plaintiff Michael Sendaydiego filed a complaint against Hilton Worldwide, Inc., Park Hotels & Resorts, Inc., Hilton Garden Inn Los Angeles/Redondo Beach, and Nadine Koch for (1) battery, (2) negligence, (3) IIED, (4) fraudulent concealment, (5) breach of contract, (6) private nuisance, and (7) public nuisance.

On January 4, 2024, plaintiff filed a request for dismissal as to Park Hotels & Resorts, Inc.

On July 16, 2024, plaintiff filed an amendment designating Redondo Industrial Park LLC as Doe 1.

On April 1, 2025, the Court granted defendants' motion to strike with leave to amend as to paras. 64, 93, and 111, and prayer at 2 and granted it without leave to amend as to para. 82.

LEGAL AUTHORITY

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction.

CCP §2030.290(b). The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906.

DISCUSSION

Defendants Hilton

Worldwide, Inc., TRCF Redondo, LLC, and Nadine Koch request an order compelling plaintiff Michael Sendaydiego to respond to defendants' initial form and special interrogatories.

Defendants state that on

December 4, 2025, they propounded written discovery on plaintiff. Plaintiff's counsel's office confirmed receipt and that the deadline to respond was January 6, 2026. On January 6, plaintiff's counsel requested a three-week extension to respond to January 27.

On January 12, defense counsel's office confirmed the extension. On January 27, plaintiff did not serve responses. On January 30, defense counsel followed up with plaintiff's counsel's office, which responded that they had incorrectly calendared the deadline and agreed to serve objection-free

responses by February 6. As of the filing date on April 21, defense counsel had not received any responses.

The Court rules as follows: The Court finds that defendants properly served their interrogatories and that plaintiff failed to respond. See Christian Ji Seup Yun decl., Exh. 1, wherein plaintiff's counsel's office states in an email, "I am confirming receipt of these requests. I have the due date calendared as January 6, 2026."

The motions are thus GRANTED.

ORDER

The motions are GRANTED.

Plaintiff

Michael Sendaydiego is ordered to respond without objections to defendants' Form Interrogatories, Set One and Special Interrogatories, Set One, within twenty days.

Defendants are ordered to give notice of ruling.